

**UNITED STATES OF AMERICA
BEFORE THE
FEDERAL ENERGY REGULATORY COMMISSION**

Interconnection of Large Loads to the) Docket No. RM26-4-000
Interstate Transmission System)

**MOTION FOR LEAVE TO INTERVENE AND COMMENTS
OF ARIZONA PUBLIC SERVICE COMPANY**

Pursuant to Rules 211, 212, and 214 of the Federal Energy Regulatory Commission’s (“Commission” or “FERC”) Rules of Practice and Procedure,¹ Arizona Public Service Company (“APS” or “Company”) hereby moves for leave to intervene in and comment in response to FERC’s Notice Inviting Comments² on the October 23, 2025 Department of Energy’s (“DOE”) Advanced Notice of Proposed Rulemaking Ensuring the Timely and Orderly Interconnection of Large Loads.³

In support thereof, APS states as follows:

I. INTRODUCTION

In the ANOPR, the Secretary of Energy directed FERC to consider potential rulemaking to ensure the timely and orderly interconnection of large loads to the transmission system.

¹ 18 C.F.R. §§ 385.211, 385.212 and 385.214 (2025).

² Notice Inviting Comments, *Interconnection of Large Loads to the Interstate Transmission System*, Dkt No. RM26-4-000 (Oct. 27, 2025) (“FERC Notice”).

³ Advance Notice of Proposed Rulemaking, *Ensuring the Timely and Orderly Interconnection of Large Loads*, Dkt No. RM26-4-000 (filed Oct. 27, 2025) (“ANOPR”).

II. CORRESPONDENCE AND COMMUNICATIONS

The names and addresses of the people upon whom all communications concerning this proceeding should be served are as follows:

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III. DESCRIPTION OF APS

APS, a wholly-owned subsidiary of Pinnacle West Capital Corporation, is a vertically-integrated public utility doing business under the laws of the State of Arizona. APS is engaged in the business of generating, transmitting and distributing electricity to eleven of Arizona's fifteen counties. APS serves more than one million retail electric customers in Arizona and participates in wholesale markets throughout the West. APS provides transmission service pursuant to its Commission-approved Open Access Transmission Tariff ("OATT") and owns facilities used for the sale and transmission of electric energy in interstate commerce. In addition, APS is authorized to sell wholesale power at both market-based rates (subject to certain restrictions) and cost-based rates. APS is also a transmission customer, taking service under its OATT as well as under the transmission tariffs of other transmission providers in the West. APS is registered with the North American Electric Reliability Corporation ("NERC") for purposes of compliance

with the Electric Reliability Standards and performs 10 of the registered NERC functions.⁴

IV. MOTION TO INTERVENE

Pursuant to Rule 214 of the Commission's Rules of Practice and Procedure,⁵ APS moves for leave to intervene in Docket No. RM26-4-000 (and all future sub-dockets) with full rights as a party. As a vertically integrated public utility that serves the type of load that is the subject of ANOPR, APS has a direct and substantial interest in this proceeding and will be directly impacted by its outcome. Moreover, APS's unique interest in the proceeding cannot be adequately represented by any other party.⁶ Accordingly, intervention by APS is in the public interest and is in accordance with Commission regulations and good cause exists for the Commission to grant APS's motion to intervene.

V. COMMENTS

APS appreciates the DOE's desire to address large load interconnection issues on a national scale and the recent FERC Notice issued on the matter requesting comments. APS also recognizes the significant undertaking faced by FERC to implement a detailed set of rules for utilities and regional markets for these large loads to interconnect into the transmission system. APS has been working with the Arizona Corporation Commission and stakeholders for years to ensure that (1) APS meets its obligation to serve all customers within its service territory, including these new large loads, (2) interconnecting these large loads does not jeopardize reliability for existing customers, and (3) the substantial infrastructure investments required to connect and serve these large loads will be paid for

⁴ APS is currently registered with NERC as a Balancing Authority, Transmission Operator, Transmission Owner, Transmission Planner, Transmission Service Provider, Planning Authority, Generation Operator, Generation Owner, Resource Planner, and Distribution Provider.

⁵ 18 C.F.R. § 385.214 (2025).

⁶ *Id.*

by those new large load customers, not existing customers. APS would urge FERC to provide draft rules to the public for comment with sufficient time to address and incorporate the resulting feedback. APS does have concerns regarding the requested implementation date for this proposed rulemaking that could have significant impacts on all stakeholders. APS is hopeful that FERC will provide a detailed proposal with sufficient time for input from stakeholders and state public utility commissions, which will allow the Commission to fully evaluate industry feedback that can account for regional, state, or even individual entity differences.

At this time, the Company does not have specific concerns with the general concepts described in the ANOPR and only a few concerns with specifics therein. APS does believe that the 20 MW threshold for what is considered a large load could be increased. In addition, the ANOPR's position of a 60-day study timeline might be inadequate dependent on the information required for the study itself, and the timeline should be determined in consultation with the stakeholders and transmission planners. APS does have a number of questions regarding potential implementation of the DOE's proposed principles. Some of the questions APS has identified so far are as follows:

1. Is the utility expected to back up all, some, or none of the load for a large load that is co-locating with a generator?
2. Will hybrid facilities be expected to match the NERC requirements? For example, when there is fast-ramping or fluctuations of load, will the generator have to match the load to avoid frequency deviations on the transmission system that are caused by mismatches between the generation and load? Without a clear requirement for hybrid

facilities to meet the standards, the burden would fall to the host utility to manage frequency deviations caused by mismatches.

3. Relatedly, regardless of whether there is a co-locating generator, will the interconnecting load have to also install equipment so that if their fast-ramping causes frequency disturbances, the utility can pinpoint it?

4. Is the intention that generators could either go through (1) the traditional generator interconnection process or (2) the load interconnection process with a co-located generator?

5. The ANOPR says that load and hybrid facilities should be studied together with generating facilities, to the extent practicable.⁷ What safeguards will there be to prevent delays to the generator interconnection process given the increase in complexity of the study process, and the increased likelihood of required restudies due to load or generation withdrawing?

6. What safeguards, if any, will be in place to ensure that a transmission service provider will not be studying the same generation as a standalone generator through the generator interconnection process and as a co-locating generator for load, potentially double counting the generation?

7. For a hybrid facility, if the load ceases operation, would the generator then be required to go offline until it goes through the generator interconnection process?

8. Will there be safeguards to ensure that there is no cost shift between new large load customers and other transmission or retail customer classes?

⁷ See ANOPR at P 20.

9. The ANOPR states that the load will be responsible for network upgrades. Will the costs be handled like network upgrades in the existing generator interconnection process, through direct assignment, or through some separate rate treatment? Will it be specified or left open for negotiation?

10. Will transmission system upgrades required to deliver power to large loads qualify as network upgrade costs for the load, or just those costs required to connect them to the transmission system?

11. FERC jurisdictional Transmission Service Providers serve a number of load serving entities, some that are FERC jurisdictional and some that are not. Will all large loads connecting to a Transmission Service Provider's system go through the same interconnection process, regardless of their load serving entity?

If FERC proceeds with developing a detailed proposed rule on the principles outlined in the ANOPR, the Company respectfully requests that the Commission consider these questions and concerns. APS intends to evaluate any draft proposed rule with a focus on system reliability and economic impact. Given these considerations, APS respectfully requests that the Commission consider APS's comments as a contribution to the large load interconnection rulemaking process.

VI. CONCLUSION

WHEREFORE, for the reasons set forth herein, APS respectfully requests leave to intervene in Docket No. RM26-4-000 as well as in all future sub-dockets and requests that the Commission accept APS's comments.

Respectfully submitted,

/s/ Farris Gillman

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On behalf of **Arizona Public Service
Company**

Dated: November 21, 2025

CERTIFICATE OF SERVICE

I hereby certify that I have on this day caused a copy of the foregoing Motion for Leave to Intervene and Comments of APS to be served upon each person designated on the official service list compiled by the Secretary of the Federal Energy Regulatory Commission for Docket No. RM26-4-000 in accordance with the requirements of Rule 2010 of the Federal Energy Regulatory Commission's Rules of Practice and Procedure.

Dated as of the 21st day of November 2025.

/s/ Farris Gillman
Farris Gillman